

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,

COMPLAINANT,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED
AND OOCL (EUROPE) LTD.

RESPONDENTS.

SEA’S OPPOSITION TO RESPONDENTS’ MOTION TO COMPEL

Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”), by its undersigned attorneys, pursuant to the Federal Maritime Commission’s (“FMC”) Rules of Practice and Procedure 46 C.F.R. §§ 502.71 and 502.150, hereby opposes the motion of Orient Overseas Container Line Limited and OOCL (Europe) Ltd. (collectively, “OOCL” or “Respondents”), to compel answers to certain interrogatories (the “Motion”).

INTRODUCTION

OOCL’s Motion seeks to compel answers to its Interrogatories Nos. 10 and 11. Those interrogatories are similar, with No. 10 requesting that SEA describe the cause of all delays relating to the retrieval and return of the containers which resulted in the Charges claimed by SEA, and No. 11 requesting how OOCL caused or contributed to the transportation delays resulting in the Charges claimed.

SEA answered those interrogatories timely on August 1, 2025, and upon provision of OOCL's revised Interrogatory No. 10 on September 18, 2025, provided an updated response on October 1, 2025. OOCL admits that SEA answered those questions (Doc. No. 104 at 3-4).

In its responses, SEA objected to the lack of clarity in the interrogatories, noted that the information is in the custody and control of OOCL because OOCL was the carrier of the containers at issue, and had custody and control of the containers at the time the challenged demurrage and detention was incurred. SEA further agreed to provide responsive, non-privileged documents in its possession, custody, or control. In response to No. 11, SEA further noted that OOCL had engaged to deliver the containers on "store-door delivery" ("SDD") terms, issued invoices for demurrage incurred while the containers were in its custody and control, and that the cause of the transportation delays was the abdication by OOCL of its contractual responsibility to deliver the containers, following the nomination of customer-nominated truckers ("CNTs") by SEA.

OOCL's objection to those answers is that OOCL contends that the various causes of delay were the fault of SEA; and OOCL seeks to compel SEA to provide a narrative on each container – while each was in the custody of OOCL – to support OOCL's contentions. But SEA does not agree that the delays were caused by SEA. SEA has plainly stated that the delays were caused by OOCL's failure to timely deliver the containers. While SEA has explained to OOCL that a cumulative business record listing the reasons why OOCL's delivery of each container was delayed was not prepared during the relevant time period, SEA has produced responsive documents in its custody and control that support its position pursuant to 46 C.F.R. § 502.145(d).

OOCL's unsupported claims of affirmative defenses are not valid grounds to support a motion to compel. Rather, they highlight that OOCL has failed to fulfill its discovery obligations – grievously so, as detailed in SEA's Motion to Compel Discovery from OOCL [Doc. No. 105].

OOCL undoubtedly has detailed documentation on the movement and handling of the containers it transports, including the SEA containers shipped under SDD terms and the delays in the inland delivery and return of those containers, but it has so far refused to produce it to SEA.

OOCL seeks to support its argument by referring to a handful of Orders from other cases. Two are Initial Orders on the merits, necessarily after the completion of discovery, depositions, and exchange of expert reports; for obvious reasons inapplicable here. The other is an Order on pending motions at a much later stage in the proceedings, following the production of expert reports that relied, in large part, on discovery provided by the respondent in the case. None of them stand for the proposition that a complainant can be compelled to detail the transportation history and delays of containers in the custody and control of the respondent in advance of the completion of a respondent's own production.

For those reasons, as more fully discussed below, OOCL's Motion should be denied.

LEGAL STANDARD

The FMC's rules permit discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense." 46 C.F.R. § 502.141(e)(1). On motion or on its own, the Presiding Officer (the Administrative Law Judge, or "ALJ") may limit the frequency or extent of discovery otherwise allowed by these rules if the ALJ determines that:

(A) The discovery sought is unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive; (B) The party seeking discovery has had ample opportunity to obtain the information by discovery in the action; or (C) The burden or expense of the proposed discovery outweighs its likely benefit, considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues.

46 C.F.R. § 502.141(e)(2)(ii).

The FMC Rules expressly permit a party to answer an interrogatory by producing business records where the answer may be determined by examining and compiling those records, so long as the responding party specifies the records in sufficient detail to enable the requesting party to locate and identify them as readily as the responding party could, and provides a reasonable opportunity to examine them. 46 C.F.R. § 502.145(d)(1)-(2).

ARGUMENT

A. SEA's Answers to Interrogatories No. 10 and 11 are Sufficient and No Further Answer is Necessary

OOCL seeks an Order compelling SEA to provide responsive answers to its Interrogatory Number 11 and revised Interrogatory No. 10. However, SEA already provided responsive answers. Further, SEA agreed to produce responsive non-privileged documents in its possession, custody, or control, and did so.

FMC Rules of Practice and Procedure ("FMC Rules") permit a responding party to produce business records as a valid answer to an interrogatory where "the answer to an interrogatory may be determined by examining, auditing, compiling, abstracting, or summarizing a party's business records." 46 C.F.R. § 502.145(d). When producing business records in response to an interrogatory, the responding party may answer by:

(1) Specifying the records that must be reviewed, in sufficient detail to enable the interrogating party to locate and identify them *as readily as the responding partying could*; and

(2) Giving the interrogating party a reasonable opportunity to examine and audit the records and to make copies, compilations, abstracts, or summaries.

46 C.F.R. § 502.145(d)(1)-(2) (*emphasis added*).

Revised Interrogatory No. 10 seeks a narrative of the cause of all delays relating to the retrieval and return of OOCL containers, and Interrogatory No. 11 seeks a narrative of how OOCL caused or contributed to the delay which resulted in the charge from OOCL to SEA. To start, SEA

has no pre-existing cumulative business records that contemporaneously tracked the cause of delays or OOCL's contribution to those delays. SEA has underlying individual business record communications between the parties, which were produced in full by SEA to OOCL. The same cannot be said of OOCL's production to SEA. (Doc. No. 105).

SEA went further in its response to Interrogatory No. 11 by providing a clear response with respect to its position of how OOCL caused and/or contributed to the underlying transportation delay. In its response, SEA clarified its position that OOCL was responsible for delivering the containers to SEA's designated inland destinations in accordance with the applicable bills of lading issued with store-door terms, and yet issued invoices for demurrage related to delays due to its own failure to timely deliver those containers. SEA further noted that the underlying delays were due to OOCL having abdicated its responsibility to manage the delivery of containers upon SEA's nomination of customer-nominated truckers ("CNTs"), without OOCL having any contractual basis to do so.

Indeed, consistent with SEA's responses to the interrogatories, OOCL has expressly pleaded that "Charges assessed to SEA for demurrage were incurred because Samsung's shipments to SEA were left at marine terminals past the expiration of free time while awaiting pickup by the CNTs designated by SEA" (Dkt. No. 19, Counterclaim ¶ 34.) OOCL also pled that "Charges to SEA for detention were incurred due to the failure of SEA or its designated CNTs to timely return OOCL's empty containers prior to the expiration of free time and not due to any act or omission on the part of OOCL." (Dkt. No. 19 Counterclaim ¶ 37). However, under the relevant service agreements, and OOCL's own tariff, OOCL – not SEA – was responsible for the management of inland carriage, with Carrier's responsibility not ceasing until the cargo was interchanged to the CNT. In the event the CNT was unable to complete the transportation, OOCL had the option to

utilize alternative trucking at shipper's expense. (OOCL's Tariff – OOLL-100, Rule T-26). OOCL failed to manage the transportation of SEA's containers in accordance with the service contracts and its own tariff, and charged SEA for OOCL's own failures, despite the fact that the containers were in the custody, control, or possession of OOCL.

The ALJ is not required to address during this discovery dispute which party's view of the theory of the case is correct; OOCL's request otherwise exposes the fallacy of its Motion. It is unclear what further information or documents OOCL seeks, especially while refusing to produce its own records from which the information it seeks can be ascertained. SEA's responses are sufficient and there is no basis to compel any further answer.

SEA has provided its answers, and has provided all responsive documents. OOCL has not, as detailed more fully in SEA's Motion to Compel discovery (Doc. No. 105). If OOCL has evidence in support of its contentions, it is obligated to produce those documents, and to answer SEA's interrogatories. However, it cannot avoid its own responsibilities by seeking to compel different answers to its questions.

B. OOCL's reliance on *Peloton v. Flexport* fails because it presupposes a developed record that OOCL has prevented by withholding discovery

OOCL's reliance on *Peloton Interactive, Inc. v. Flexport International, LLC*, FMC No. 24-19, Doc. No. 72, is misplaced. *Peloton* did not require a complainant, mid-discovery, to generate container-by-container causation narratives untethered from the operational files of the carrier who had custody and control of the containers at all relevant times.

Peloton arose against the backdrop of multiple prior discovery orders and motion practice over whether those orders had been satisfied. The disputes at issue arose post-fact discovery, during the expert phase, as to the scope of documents produced. *Peloton* undercuts OOCL's premise about what "shipment-by-shipment causation" looks like in practice. There, the ALJ

credited that the claimant's supplemental analysis during the expert phase was built from the respondent carrier's Portal Event Files generated by its primary operating platform used to monitor and manage shipments and to assess demurrage and detention. *Id.* at 10.

Peloton's expert reviewed those event files to identify delay causes such as lack of chassis and lack of terminal appointments, and then applied structured search terms and a machine-learning tool to categorize responsibility. The expert's report further identified charges for which "no cause could be determined" from the event history and assigned those to the respondent because it was responsible for inland transportation, consistent with the store-door premise. (Doc. No. 102 at 7). That is the opposite of what OOCL seeks here: compelling SEA to supply sworn shipment narratives without the carrier's complete operational event record.

In this matter, the proceeding is at a materially earlier stage. There have been no prior discovery motions, no depositions, written discovery is ongoing, and no expert testimony or expert report has been served. OOCL seeks to invoke *Peloton* at the front end of discovery while simultaneously withholding the very operational and shipment level materials needed to support any expert driven analysis in the first place. OOCL cannot demand SEA provide container by container proof on an undeveloped record and then cite *Peloton* as support, where *Peloton*'s premise was that the record had been built enough for an expert to do the work and tie the event history to specific shipments based on documentation actually produced by the respondent

C. OOCL's references to *SM Line Corporation* and *TZ SSE Buyer* are misplaced

OOCL's motion cites *Samsung Electronics America, Inc. v. SM Line Corporation*, FMC Dkt. No. 23-01, Initial Decision, Dkt. 148 and *TZ SSE Buyer, LLC v. Yang Ming Marine Transport Corp.*, FMC Dkt. No. 24-10, Initial Decision, Doc. No. 35, to argue that SEA must prove, container by container, what acts or omissions on the part of the carrier caused its alleged damages. OOCL's reliance on these decisions in connection with its Motion is misplaced. Those decisions address

what the ALJs in those cases concluded that a complainant must ultimately prove on the merits – not what constitutes a sufficient answer to an interrogatory, mid-discovery.

As an initial matter, we respectfully submit the relevant burdens have been misconstrued, as those rulings were contrary to 46 U.S.C. § 41310, which states that a “common carrier shall...(b) bear the burden of establishing the reasonableness of any demurrage or detention charges pursuant to section 545.5 of title 46, Code of Federal Regulations (or successor regulations).” That Congressional, statutory, requirement applies not only to charge complaints under § 41310, but also in the context of a § 41102(c) complaint, as here. The Commission has ruled that “the Commission would avoid any interpretation of section 41102(c) that would be inconsistent with other Shipping Act provisions or Commission regulations or that would subject regulated entities to incompatible requirements.” *Interpretive Rule on Demurrage and Detention Under the Shipping Act*, 85 FR 29638-01, 29660, 2020 WL 2512371 (May 18, 2020).

Regardless, the procedural posture matters. *SM Line* and *TZ SSE Buyer* were Initial Decisions on the merits of the matters, made after the close of discovery, and applying the Commission’s fact-specific reasonableness framework to a closed record. Neither case stands for the proposition that a Respondent may, during fact discovery, compel the Complainant to generate shipment-by-shipment causation narratives prior to the respondent’s completion of its own production and discovery responses.

For example, in *SM Line*, the ALJ relied on SM Line’s own internal D&D Summary Report and internal fault analysis to establish the basis for delays leading to unreasonable demurrage charges. Likewise, In *TZ SSE Buyer*, the challenged demurrage charges related to containers shipped on a “container yard” basis, with the shipper contractually responsible for demurrage, and

therefore the complainant's evidence of port congestion did not establish the unreasonableness of the specific charges at issue. *TZ SSE Buyer*, at *22-23.

In summary, the cited cases are not relevant to the issue at hand.

D. SEA is not responsible for OOCL's overbreadth complaints and has provided reasonable production navigation tools to make OOCL's review easier

OOCL chose to serve discovery that, by its nature, would sweep broadly across a high-volume shipment universe. SEA complied with its discovery obligations and produced responsive documents. Having made broad and sweeping requests, OOCL cannot now shift the downstream cost of its own request design onto SEA by claiming the production is too large and demanding that SEA must distill it into shipment-by-shipment narrative answers. OOCL has the same ability SEA has to search, filter, and analyze the produced files. The production is text-searchable and can be reviewed using standard litigation tools and search methodologies. The full, responsive production of which OOCL complains is not a deficiency in SEA's responses, and it is not a justification for converting discovery into a compelled, early merits-style synthesis.

Indeed, in an effort to act with good faith professional courtesy, SEA went beyond what the Rules require to facilitate OOCL's review. SEA implemented an electronic tagging approach to map documents to requests and provided navigational aids to orient OOCL's review. That is precisely what reasonable cooperation in discovery looks like. OOCL cannot demand that SEA build a production-navigation system, receive the benefit of it, and then argue that the existence of a large record somehow evidences evasion; particularly where OOCL itself has failed to make meaningful production to SEA (Doc. No. 105).

If OOCL believes particular requests yielded disproportionate hit counts, the proper remedy is targeted narrowing and targeted follow-up of its production requests. OOCL can, if it wishes to do so, identify discrete categories, custodians, date ranges, or shipment subsets and

request tailored supplementation. What OOCL cannot do is use generalized complaints about the size of the production to obtain a different remedy entirely: forcing SEA to generate new narrative causation content that SEA does not maintain in the ordinary course, especially where that content would come from operational facts housed in OOCL's own systems.

CONCLUSION

Contrary to OOCL's complaint, SEA has answered Interrogatories 10 and 11. Yet OOCL nonetheless seeks to compel SEA to generate container-by-container narratives on the reasons for OOCL's own failure to timely deliver the containers that were within its custody and control, and for the demurrage charges issued by OOCL, based on operational facts that OOCL maintains in its own systems and records, and that OOCL has failed to produce. OOCL does so even though it has itself asserted that demurrage and detention at issue were incurred due to CNT pickup and return conduct that OOCL was obligated to manage under its own tariff.

OOCL's Motion is baseless, and merely seeks to distract from its own blatant failure to comply with its discovery obligations. We respectfully request that OOCL's Motion be denied.

Dated: January 26, 2026

Respectfully Submitted,

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